Reporting Fraud and Abuse

Adopted April 2, 2025

Definition

"Improper action" means any action by a PVLAD board member or contractors:

1) That is undertaken in the performance of their official duties, whether or not the action is within the scope of their responsibility; and

2) That is in violation of any federal, state, or local law or rule, is an abuse of authority, is of substantial and specific danger to the public health or safety or is a gross waste of public funds.

Reporting Fraud or Abuse PVLAD board members or contractors (reporters) who become aware of improper actions should raise the issue with the PVLAD Board Chair. If requested, the reporter shall submit a written report stating in detail the basis for their belief that an improper action has occurred. Where the reporter reasonably believes the improper action involves the board chair, the reporter may raise the issue directly with the vice-chair of the PVLAD.

The Board Chair or Vice-Chair, as applicable, shall take prompt action to assist PVLAD in properly investigating the report of improper action. PVLAD board members shall keep the identity of reporting members confidential to the extent possible under law, unless the member authorizes the disclosure of his or her identity in writing. After an investigation has been completed, the member reporting the improper action shall be advised of a summary of the results of the investigation, except that personnel actions taken as a result of the investigation may be kept confidential.

The issue may also be reported directly to the State Auditors Office if the member reasonably believes that an adequate investigation was not undertaken to determine whether an improper action occurred, or that insufficient action has been taken to address the improper action or that for other reasons the improper action is likely to recur.

Matters reported that are not a good-faith attempt to follow procedures in reporting improper action shall not receive the protections provided by PVLAD in these procedures.

Complaints, Investigations, Review and Enforcement

A. Any person may file a complaint alleging a violation of this policy.

B. The complaint shall be in writing and shall, except as described in section C below, be signed by the complainant. The written complaint should state the nature of the alleged violation(s), the date(s), time and place of each occurrence, and name of the person(s) charged with the violation(s). The complaint shall be filed with the Chair of PVLAD board who shall provide a copy to the person charged with a violation. The complainant shall provide the Chair or Vice-Chair with all available documentation or other evidence to demonstrate a reason for believing that a violation has occurred.

C. This policy is intended to protect members who choose to come forward in good faith with complaints about actions and conduct of PVLAD board members. Anonymous complaints have the potential to subject the person who is the subject of the complaint to an investigation that may, at the least, cause stress and embarrassment, and may, at most, result in discipline or

rejection of volunteer services. PVLAD is reluctant to begin an investigation based on an anonymous complaint due to the fact that evidence will be difficult to obtain and verify, and it will be impossible to assess the complainant's credibility. Complainants and whistleblowers have protection from retaliation under PVLAD policy. A thorough investigation of complaints is PVLAD's goal. It may not be possible to conduct a thorough investigation when a complainant remains anonymous. Therefore, PVLAD reserves the right to decline to investigate any complaint that is provided anonymously.

If a complaint is received anonymously it shall be directed to the board chair for a recommendation on the processing of the complaint. Upon review of the complaint, the board chair will recommend to the PVLAD board either that the complaint has no merit or that it should be investigated. Such a recommendation will be made within ten (10) days of receipt of the complaint, if possible. Upon receipt of the board chair's recommendation the PVLAD board shall make the final determination on whether or not to continue the investigation, end the investigation, or refer the matter to an outside entity.

D. Within thirty (30) days after receipt of a complaint, the board chair or another person appointed by the PVLAD board shall conduct a preliminary investigation. If a member of the PVLAD board is implicated in the complaint, the PVLAD board will determine an independent person who will conduct the investigation. Criminal allegations will be referred to the proper law enforcement agency.

E. If the board chair determines, after preliminary investigation, that there are no reasonable grounds to believe that a violation has occurred, the board chair shall advise the PVLAD board to dismiss the complaint. If the PVLAD board does dismiss the complaint, it shall do so in writing, setting forth the facts and provisions of law upon which the dismissal is based, and shall provide a copy of the written dismissal to the complainant, to the person charged with the violation and to the governing board.

Whistleblower Protection

Utah Code § 67-21-3 prohibits public employers from taking adverse action against their employees for reporting in good faith government waste or violations of law to the appropriate authorities. A public entity employee, public body employee, legislative employee, or judicial employee, is presumed to have communicated in good faith if they have given written notice or otherwise formally communicated the conduct to the person in authority over the person alleged to have engaged in the illegal conduct.